

Kate Stoeckel, Serpents, Steam Trains and Aboriginal Title

Introduction

Coming from Australia and now living in British Columbia, I am often asked the question: "Aboriginal people seem to have a rough lot in Australia - how does that compare with the situation here?"

This is not an easy question to answer. My instinct has always been to say that - despite a common background and with much left to do on both sides - things are a little better today for Indigenous people in this province.

This assignment attempts to explore this difference, and in so doing delve a little further into questions and thoughts that recur during my stay here. Although there are extensive and serious problems for Indigenous peoples in numerous areas - education, healthcare and disproportional poverty rates are just a few - the focus here is on Aboriginal title to land. This is because title is fundamental to all other issues, for, as discussed below, connection with the land is central to the Indigenous societies in both areas. Land links the Indigenous people with their rich cultural heritage, which includes their legal systems, governing relationships with the land and animals, and between humans.

The Painting

My painting reflects three themes: creation, colonisation and today's discrepancy in Aboriginal title. I must, however, start with a caveat. This project explores the mod situation faced by two Indigenous peoples sharing a similar colonisation background. The similarities between Australia and British Columbia are striking: they share a similar colonial history; in neither area were treaties signed with the Indigenous inhabitants of the land; there is a lack of political will to recognise title today; and, both regions share legacies of monumental cases recognising Aboriginal title at common law - *Mabo v State of Queensland (No. 2)*¹ and *Delgamuukw v British Columbia*².

Ultimately, however, one region's recognition of Aboriginal title is viewed as being stronger than the other. The caveat is that this is not to say that circumstances in the former do not need to improve further: they do. However, the

continued complexity of the challenges faced today by Indigenous groups warrants a separate project. Rather, it is the aim of this assignment to compare how strongly Australian and British Columbian law (including Canadian Constitutional law) recognise Indigenous title, despite its obvious imperfections in both regions.

Creation

The Dreaming means our identity as people. The cultural teaching and everything, that's part of our lives here, you know!... it's the understanding of what we have around us.

Merv Penrith, Elder

Wallaga Lake, 1996³

First I will discuss the two (broadly representative) Indigenous creation stories, which show that the respective mythological creator-being made the landscape and people, and in so doing bestowed laws and religion upon humans since the beginning of time.

Rainbow Serpent

The Rainbow Serpent on the left side of the painting is a creation story common to many Aboriginal peoples in Australia. It is set in the Dreamtime, also known as the Dreaming - the ancient period when the world was created. All the plants, animals and humans were created, and the land was shaped into its present-day form. The spirits of the ancestral creator-beings live on today - inhabiting the rocks, waterholes, trees, mountains, stars and other natural features of the landscape. Every area of land is associated with some Dreaming spirit.

This is why land is so important to Aboriginal people - it provides the link between an Indigenous group and their Dreaming. Thus it is vital to protect and preserve Aboriginal title to land, because the Dreaming was also the period where the rules and laws governing the social relationships between people, and between people and the land, were established. Without the connection to land, and therefore the Dreaming, the most fundamental aspects of Indigenous culture and the framework for living are liable to be destroyed.

Dreaming stories vary between region and Indigenous group. I have chosen

Rainbow Serpent Dreaming even though it is only one creation story among many, because it is one of the most widely shared beliefs among Aboriginal groups. The Rainbow Serpent is the protector of the people and the land included in its Dreaming, and it is usually attributed with the source of all life particularly through its link with water. It is a persistent theme among Aboriginal communities, and images of Rainbow Serpent Dreaming have been found in rock art as old as 6,000 years.⁴

Rainbow Serpent paintings tell the story of the Dreamtime Serpent as it moves across the land. As it traverses the landscape, its track creates waterholes (represented by concentric circles), rivers, valleys and other natural features. Each various artistic rendition of the story of the Rainbow Serpent is therefore specific to a particular piece of land, represented by the dot background over which the Serpent is travelling.

¹ *Mabo v State of Queensland (No. 2)* (1992) 175 CLR 1 [hereafter *Mabo (No. 2)*].

² *Delgamuukw v British Columbia* (1977] S.C.J. No. 108 (QL) [hereafter *Delgamuukw*].

³ Australian Museum Online, *Indigenous Australia: The Dreaming*, online at <http://www.dreamtime.nct.au/index.ctin> (date accessed 21 April 2004).

⁴ Australian Museum Online, *Indigenous Australia: The Dreaming*, online at <http://www.dreamtime.net.au/index.ctin> (date accessed 21 April 2004).

Raven, the Trickster

On the coast of the Pacific Northwest, it is another creature - the raven - that enjoys status as the most widespread figure in Indigenous mythology. Raven is the being most commonly associated with creation among the coastal Aboriginal peoples in the Pacific Northwest. Raven is a wise, yet mischievous character, also known as the Trickster. Raven is attributed with placing the sun, moon and stars in the sky, and with creating the natural features of the landscape, such as mountains, valleys, islands and rivers.⁵ Raven brought fire and salmon to humans, and his mischievous tricks provide endless material for amusing tales. As in Australia, social relationships and connections to the land were governed by laws passed down from the time of creation, and were inseparable from these myths. The First Salmon Ceremony - revering and thanking the salmon spirits in a strict ceremony-

is one example of this.⁶

In my painting, Raven is depicted holding the sun in his beak. This story tells of how Raven stole the sun and placed it in the sky in order to bring light to the world. Raven is also associated with the creation of humans. For example, the Haida people of Haida Gwaii believe that Raven found the first humans in a giant clamshell on the beach at Rose Spit. Haida artist Bill Reid depicts this story in a stunning sculpture entitled *Raven and the First Men*, situated at UBC's Museum of Anthropology. Reid recounts the creation story:⁷

As the raven scanned the beach, a white flash caught his eye, and when he landed he found at his feet, half buried in the sand, a gigantic clamshell. When he looked more closely still, he saw that the shell was full of little creatures cowering in terror of his enormous shadow.

Well, here was something to break the monotony of his day. But nothing was going to happen as long as the tiny things stayed in the shell, and they certainly weren't coming out in their present terrified state.

So the Raven leaned his great head close to the shell, and with the smooth trickster's tongue that had got him into and out of so many misadventures during his troubled and troublesome existence, he coaxed and cajoled and coerced the little creatures to come out and play in his wonderful shiny world.

This story illustrates both the Indigeneity of the First Nations people in British Columbia as the first people to inhabit the 'shiny new world' of the Pacific Northwest, and Raven's role in bringing this about.

⁵ Bruggmann, M. & Gerber, P., *Indians of the Northwest Coast*, (Facts on File: NY, 1987) at 133.

⁶ Bruggmann, M. & Gerber, P., *Indians of the Northwest Coast*, (Facts on File: NY, 1987) at 137.

⁷ Reid, B. & Bringham, R., *The Raven Steals the Light* (Douglas & McIntyre: Vancouver, 1984)

Colonisation

The second concept that my painting symbolises is the colonisation process on both continents. On the Aboriginal Australian side, the red 'U' shapes signify the arrival of the First Fleet in 1788 and the coming of white convicts and settlers in countless later ships. Between 1788 and 1850 over 162,000 English convicts were sent to Australia.⁸ Free settlers began arriving in 1793, and the discovery of gold brought many punters willing to try their luck - over 1.6 million settlers arrived in 1871 alone.⁹

This new age brought with it English law and assertions of sovereignty by the Crown. Traditional Aboriginal territory and hunting grounds were lost, Aboriginal laws were ignored, Indigenous populations succumbed to European diseases, and native title to the land began to be extinguished piece by piece as settlement proceeded inland from the coast. The 'ships' in my painting represent this gradual process of colonisation, and the tragedy that it entails.

On the First Nations side, the top image is a representation of a steam train. As in Australia, white settlement devastated native communities by many means, such as smallpox plagues,¹⁰ the loss of land and traditional hunting grounds, and cultural loss from schemes such as cultural assimilation, Residential Schools and the ban on the potlatch. Although settlement was already proceeding apace in British Columbia, the transcontinental railway facilitated a far more extensive movement of people by uniting west with east. In his study of the Great Canadian Railway, historian Pierre Berton notes, "Of the 133,000 who arrived in Canada in 1883, two-thirds sped directly to the North West."¹¹ For the native peoples of the area, the railway symbolised the end of the world as they knew it, instantaneously ushering in a terrible era where wholesale losses of land, culture, health and dignity were commonplace. For example, Berton documents the changes faced by the Plains Indians as they were forced onto reserves as their hunting grounds shrank when the railway advanced:

Within six years, the image of the Plains Indian underwent a total transformation. From being a proud and fearless nomad, rich in culture and tradition, he became a pathetic, half-starved creature, confined to the semi-prisons of the new reserves and totally dependent on government relief for his existence. Without the buffalo, which had supplied them with food, shelter, clothing, tools, and ornaments, the Indians were helpless. By 1880, after the three most terrible years they had ever known, the emaciated natives were forced to eat their dogs and their horses, to scabble for gophers and mice, and even to consume the carcasses of animals found rotting on the prairie.¹²

These events mention just one tragedy among the many faced by the Indigenous people of the Northwest. In British Columbia, the government's harsh refusal to negotiate treaties with the Aboriginal people compounded their hardship. The Aboriginal people of the Pacific Northwest shared a similar fate to other colonised peoples, such as the Aboriginal peoples in Australia.

Today's discrepancy

Despite the hardships, noted above, for Aboriginal peoples in British

Columbia, their land title situation compares somewhat favourably to that of the Indigenous Australians. This discrepancy in strength of Aboriginal title in the two regions is portrayed by the traditional legal image of the scales of justice, tilted to show that title is stronger in Canada's Pacific Northwest. This image is superimposed upon the Union Jack, symbolising the common heritage in the Crown shared by both regions.

⁸ Dunn, C., *Australia's First Fleet - 1788*, online at <http://www.ulladu.la.info/historian/ffstory.html> (date accessed 21 April, 2004).

⁹ *Australia's History*, <http://members.optusnet.com.au/bnbg6billion/6billionAustralia.htm> (date accessed 20 April, 2004)

¹⁰ Estimates of the original populations of some of the Pacific Northwest aboriginal groups are given, followed by the population after smallpox plagues had passed through: Nootka : 30,000/2,000 in 1930; Tlingit: 12,000/3,895 in 1920; Haida: 6,000 plus 3,000 Kaigani Haida/total only 558 in 1915 ; Southern Kwakiutl: 9,000/3,200 in approx 1980: Bruggmann, M. & Gerber, P., *Indians of the Northwest Coast*, (Facts on File: NY, 1987).

¹¹ Berton, P., *The Great Railway, Illustrated*, (McClelland & Stewart: Toronto, 1972) at 220.

¹² *Ibid.* at 224.

Why the Difference?

This assignment offered a chance to think through some of the reasons for the difference in strength of Aboriginal title in both regions. Although these reasons can be collected under various themes, many of them are intertwined.

Constitutional protection

Indigenous groups in Canada are fortunate in that they have constitutional protection of Aboriginal and treaty rights, which are thereby part of the "supreme law of the nation, unalterable by the normal legislative process, and unsuffering of laws inconsistent with it".¹³ Section 25 of the *Canadian Charter of Rights and Freedoms* provides that the Charter "shall not be construed so as to abrogate or derogate from any aboriginal, treaty or other rights or freedoms that pertain to the aboriginal peoples of Canada... "

In particular, Aboriginal rights in Canada were recognized and affirmed in section 35(1) of the *Constitution Act 1982*, where it provides that: "The existing aboriginal and treaty rights of the aboriginal peoples of Canada are hereby recognized and affirmed".¹⁴ This includes rights recognised and protected by the common law. Section 35 is a unique provision, as it entrenches Aboriginal rights

in the Canadian Constitution. This entrenchment gives them weight and strength, although they are not absolute and may be infringed upon by the legislature provided the infringement is 'justified'.¹⁵

In contrast, there is no constitutional comparator for either section 35 or 25 in Australia, for nothing in the Australian Constitution guarantees, recognises or protects Aboriginal rights and title. Further, rights protection generally in Australia is scant - Australia does not have any provisions in its Constitution offering rights protection similar to the Canadian Charter, nor is there even a legislative Bill of Rights. The Commonwealth *Racial Discrimination Act* of 1975 serves the purpose of protecting against actions conducted under laws that are discriminatory on the basis of race. However, protection is ruled out against the numerous acts from earlier settlement eras that effectively extinguished native title when the act/s in question pre-dated 1975, the year the *Racial Discrimination Act* came into effect.

The stark difference in meaning between the approaches taken by the two nations in choosing whether or not to entrench Aboriginal rights in their respective constitutions can be seen in these excerpts from the Supreme Court of Canada's *Sparrow* decision:

Our history has shown, unfortunately all too well, that Canada's aboriginal peoples are justified in worrying about government objectives that may be superficially neutral but which constitute de facto threats to the existence of aboriginal rights and interests. By giving aboriginal rights constitutional status and priority, Parliament and the provinces have sanctioned challenges to social and economic policy objectives embodied in

*legislation to the extent that aboriginal rights are affected.*¹⁶

*We would not wish to set out an exhaustive list of the factors to be considered in the assessment of justification. Suffice it to say that [constitutional] recognition and affirmation requires sensitivity to and respect for the rights of aboriginal peoples on behalf of the government, courts and indeed all Canadians.*¹⁷

Equality within the nation

Canada is fundamentally concerned with equality. Its adoption of a constitutionally protected equality rights provision in the Canadian *Charter of Rights and Freedoms* in 1982 illustrates the strong belief held by this nation in equality of individuals before and under the law. I argue that the debates surrounding the adoption of the Charter and the other Constitutional amendments in 1982 pushed this consciousness to filter through to mainstream awareness of equality for minority groups, both within and between provinces and territories.

¹³ *Reference re Manitoba Language Rights*, [1985] 1 S.C.R. 721, at 745.

¹⁴ *Constitution Act, 1982*, being Schedule B to the *Canada Act 1982* (U.K.), 1982, c. 11.

¹⁵ *R. v. Sparrow* [1990], 1 S.C.R. 1075 [hereafter '*Sparrow*']¹

⁶ *Sparrow* at 1110, emphasis added.

¹⁷ *Sparrow* at 1119.

Additionally, because Canada has a history of treating with the Aboriginal peoples of this territory in all provinces and territories except British Columbia, I also argue that this history of treaty making in the rest of Canada and the glaring inequality seen in the lack of treaties in this province today place pressure on the government of BC to seriously consider land agreements. At the very least, it leads people to question why the situation is different here, which in turn leads them to take the Aboriginal title debate seriously. Creation of the Inuit self-governing territory of Nunavut in 1999 also served to highlight the possibilities that can exist for Aboriginal peoples in Canada today .

By contrast, Australia is in a very different position. Not one single state has a history of treaty making with Aboriginal communities, so there is little pressure on state governments to be seen to be 'keeping up' with the rest of the country. Additionally, Australia is the only western nation not to have a Bill of Rights, which would serve to guarantee equality rights of minority groups. As seen above, the *Racial Discrimination Act* protects against discriminatory laws, however, its status as a 'mere' act of the legislature (as opposed to the constitutionality of Canada's Charter) means that it has not filtered into national consciousness enough to be of any persuasive use to achieve broad-based, mainstream support for Indigenous land claimants.

Common law developments

There have been numerous and interesting developments in the common law in both jurisdictions. However, the legislature has taken the lead over this issue in Australia with a highly complex and detailed *Native Title Act* in 1993. The *Native Title Act* was amended in 1998 as a legislative response to a High Court decision stating that native title could co-exist with certain other proprietary interests,¹⁸ and now purports to cover the field. A legislative approach must necessarily attempt to codify and clarify all possible concepts, and to cover existing situations and both foreseen and unforeseen future circumstances. As can be seen in the *Ward* decision of 2002, discussed below, this leads the Court into a tedious, detailed examination of the *Native Title Act*. The imposition of the *Native Title Act* in Australia has constrained the judiciary to lengthy interpretations of its complex legislative scheme, which purports to cover the field in this area. Consequently, developments in British Columbia, including developments in the Canadian Supreme Court, have progressed further than in Australia.

¹⁸ *Wik Peoples v Queensland* (1996) 187 CLR 1.

Frozen rights

As shown in *Sparrow*, Aboriginal rights are able to be transformed and 'developed' in order to meet the modern day requirements of Aboriginal peoples:

*Far from being defined according to the regulatory scheme in place in 1982, the phrase "existing aboriginal rights" must be interpreted flexibly so as to permit their evolution over time. .. Clearly, then, an approach to the constitutional guarantee embodied in s. 35(1) which would incorporate "frozen rights" must be rejected.*¹⁹

This shows that Aboriginal rights, of which Aboriginal title is a species, can be exercised in ways that were not contemplated at the time of European arrival. The majority in the Australian High Court decision of *Western Australia v Ward & Ors*²⁰ take the opposite approach, forcing a 'frozen rights' approach upon Indigenous Australians. When discussing the right to minerals found on the land subject to the Ward claimants' native title application, the majority of the High Court held that there was:

*no evidence of any traditional Aboriginal law, custom or use relating to petroleum.. [or] to any of the substances dealt with in the [relevant] Mining Acts. In these circumstances, no question of extinguishment arises . No relevant native title right or interest was established.*²¹

Notably, Justice Kirby dissented strongly on this point. In his view, the common law has the capacity to recognise and reflect changes and developments to traditional Aboriginal ways of using resources found upon their land. The common law should not adhere to the frozen rights approach:

*It would be a mistake to ignore the possibility of new aspects of traditional rights and interests developing as part of Aboriginal customs not envisaged, or even imagined, in the times preceding settlement.*²²

In arriving at this decision, Kirby J took particular notice of common law developments in Canada, including *Hamlet of Baker Lake v Minister of Indian Affairs and Northern Development*?²³ and *R v Sparrow*.²⁴

Fiduciary duty

Another Canadian development yet to arrive in Australian jurisprudence is the doctrine of the Crown's fiduciary duty toward Aboriginal peoples. In *Guerin v The Queen*²⁵ the Supreme Court of Canada held that a fiduciary duty toward Aboriginal peoples arises from the pre-existing, *sui generis* nature of Aboriginal title itself and the fact that Aboriginal title is inalienable, save to the Crown. Thus, the

Crown was under an obligation to deal in a responsible manner with the land on behalf of the Musquem.

The fiduciary duty has been attributed to several sources: the nature of the Aboriginal interest in land itself; the Royal Proclamation of 1763, which indicates the Crown's policy towards Aboriginal people, reserving all ancestral lands to their Indigenous inhabitants except land that has been ceded or purchased by the Crown; the series of Indian Acts (the first came into force in 1876) setting out a statutory scheme prohibiting the disposal of reserve lands save to the Crown; prior Indigenous occupation of the land; the Crown's history of treating with Aboriginal peoples; and section 35 of the *Constitution Act* of 1982. As stated in *Sparrow* at 1108-1109:

The sui generis nature of Indian title, and the historic powers and responsibility assumed by the Crown constituted the source of such a fiduciary obligation. In our opinion, Guerin, together with R. v. Taylor and Williams (1981), 34 O.R. (2d) 360, ground a general guiding principle for s. 35(1). That is, the Government has the responsibility to act in a fiduciary capacity with respect to aboriginal peoples. The relationship between the Government and aboriginals is trust-like, rather than adversarial, and contemporary recognition and affirmation of aboriginal rights must be defined in light of this historic relationship.

These sources seemingly preclude a finding of a fiduciary duty of the Crown to Aboriginal Australians.²⁶ There are no equivalents to the Indian Acts in Australia, the Royal Proclamation or, as noted above, section 35 of the Canadian Constitution. However, both jurisdictions recognise the prior occupation of the Indigenous inhabitants, and native title in Australia is inalienable except upon surrender to the Crown, which corresponds with the statutory provision of the Indian Acts in Canada. In addition, general equitable principles of Australian fiduciary duty law may apply where there is a "special vulnerability of those whose interests are entrusted to the power of another".²⁷

²² *Ward* at [574].

²³ (1979) 107 DLR (3d) 513 at 525-529

²⁴ *Sparrow* at 1093

²⁵ [1984] 2 S.C.R. 33

Duty to negotiate

One of the incidents of the fiduciary duty held towards Aboriginal peoples in

Canada is the duty to negotiate and consult in good faith over decisions affecting Aboriginal lands. As noted in the majority judgment in *Delgamuukw*:²⁸

The Crown is under a moral, if not a legal, duty to enter into and conduct those negotiations in good faith. Ultimately, it is through negotiated settlements, with good faith and give and take on all sides, reinforced by the judgments of this Court, that we will achieve ... "the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown". Let us face it, we are all here to stay.

This is one area where the balance is tipped in favour of Australia. The *Native Title Act* imposes a duty to negotiate with Aboriginal communities when activities such as mining exploration or other development affects areas subject to native title claims. Notably, this negotiation must occur regardless of whether the claim is awaiting proof in court, and, as such, offers greater protection than that in Canada.²⁹

²⁶ However, Toohey J in a dissenting opinion considers this possibility in *Mabo (No. 2)*. Basing his analysis on Canadian case law, Justice Toohey finds there could be a fiduciary obligation towards Indigenous Australians. However, any express finding of this was precluded in his judgment because he held that native title did not survive in that case, and therefore that there could not be a fiduciary duty. See *Mabo (No. 2)* per Toohey J at para [93].

²⁷ *Hospital Products Ltd v United States Surgical Corporation* (1984) 156 CLR 41

²⁸ *Delgamuukw* at para [186]

Political will

In both jurisdictions, political will is lacking to definitively settle Aboriginal title claims and, in so doing, provide justice to both nations' Indigenous inhabitants. However, there is a little more progress in the political arena in British Columbia. Perhaps this is due to the mainstream awareness of Aboriginal rights and title, arising from activities such as the BC Referendum for treaty negotiations with First Nations, held in 2002. Although only 34 percent of voters returned their ballots by the voting deadline,³⁰ the controversy that this referendum raised at least placed the issue of Aboriginal title through a treaty process on the political radar screen for most people in the province. Whether voters agreed or disagreed with the process, they had to sit up and take notice.

In Australia, repeated requests from the Aboriginal community for a treaty - even a merely symbolic and not substantive treaty - fall upon the deaf ears of government. The majority of people live along the southern and eastern seaboard, where - being the sites of the earliest colonies - grants of freehold have long extinguished native title.³¹ To these people, the issue is not pressing and seemingly not important to their secure, everyday lives. It does not help that under the legislative approach to the issue, land and sovereignty are dealt with separately, with an avenue available for the former (the *Native Title Act*), but not the latter. In contrast, land and sovereignty are both brought to the table in British Columbia treaty negotiations, which is a more accurate reflection of how Indigenous peoples see their relationship to the land, as discussed in the first part of this assignment.

²⁹ Note, however that this argument was put before the Supreme Court of Canada in the appeal of *Haida Nation v British Columbia (Minister of Forests)* in 2004. Judgment is reserved.

³⁰ Pederson, N., 'This is What Democratic Expression Looks Like', *Alternatives*, 2 June, 2002, online at <http://www.alternatives.ca/article443.htm1> (date accessed 22 April 2004).

³¹ If there was any doubt of this, the case of *Members of the Yorta Yorta Aboriginal Community v State of Victoria and Others* [2002] HCA 58 (12 December 2002) definitively settled this issue.

Conclusion

It can be argued from the above analysis that - although still a long way from perfect - Aboriginal title, and the rights that flow from that connection with the land, enjoy a far greater degree of protection in British Columbia than they do in Australia. However, as the jurisdictions share a similar colonial and common law heritage, there is reason to hope that legal and political developments in one jurisdiction can be used to strengthen Aboriginal title claims in the other jurisdiction.